



TRANSACTION INSTRUMENT · CONFIDENTIAL

STOCK PURCHASE & TRANSFER AGREEMENT.

This form governs (a) the Company’s issuance of new Shares in a priced equity round, and (b) any secondary Transfer of existing Shares between Stockholders or to third parties, subject to the Stockholders’ Agreement. Used in connection with the Private Raise (Accredited, Rule 506(c)) and subsequent rounds.

COMPANY Music Habitat Corp. (Montana)	USE Priced Equity Rounds & Secondary Transfers
SHARE CLASS As specified per transaction	GOVERNING LAW Montana · AAA Missoula



ARTICLE 1

Definitions

This Stock Purchase and Transfer Agreement (this “Agreement”) is entered into as of the date set forth on the signature page, by and between the party identified as “Seller” on the signature page (the “Seller”), the party identified as “Buyer” on the signature page (the “Buyer”), and Music Habitat Corp. a Montana corporation (the “Company”), which is joining solely for the purposes of Sections 3, 6, and 8.

“Shares” means The shares of the Company’s capital stock being purchased and sold pursuant to this Agreement, as specified on Exhibit A (Transaction Summary).

“Purchase Price” means The total consideration to be paid by Buyer for the Shares, as specified on Exhibit A.

“Price Per Share” means The per-share purchase price as specified on Exhibit A.

“Closing” means The consummation of the purchase and sale of the Shares pursuant to Article 6 of this Agreement.

“Closing Date” means The date on which the Closing occurs, as specified in Article 6 or agreed upon in writing by the parties.

“Transaction Type” means Either (i) a Primary Issuance (Company issuing new Shares to Buyer) or (ii) a Secondary Transfer (Seller transferring existing Shares to Buyer), as indicated on Exhibit A.

“Stockholders’ Agreement” means The Stockholders’ Agreement of the Company dated _____, as amended.



ARTICLE 2

Purchase and Sale

2.1 Agreement to Purchase and Sell

Subject to the terms and conditions of this Agreement, Seller agrees to sell, transfer, and deliver to Buyer, and Buyer agrees to purchase from Seller, the Shares at the Purchase Price, free and clear of all liens, pledges, security interests, and encumbrances, other than restrictions imposed by this Agreement, the Stockholders' Agreement, and applicable securities laws.

2.2 Purchase Price; Payment

The Purchase Price shall be as set forth on Exhibit A. At Closing, Buyer shall pay the Purchase Price to Seller (or, in the case of a Primary Issuance, to the Company) by wire transfer of immediately available funds to the account designated in writing by Seller/Company not less than two (2) business days before the Closing Date.

2.3 Pre-Closing Conditions

The obligation of the parties to consummate the Closing is conditioned upon: (i) ROFR compliance: the Company and all Stockholders having waived or declined to exercise their rights of first refusal under the Stockholders' Agreement with respect to the Shares; (ii) all consents and approvals required under the Stockholders' Agreement, Operating Agreement, and applicable law having been obtained; (iii) the representations and warranties of each party being true and correct as of the Closing Date; (iv) in the case of a Primary Issuance, the Board having approved the issuance by written resolution; and (v) where required, verification of Buyer's accredited investor status under Rule 506(c).



ARTICLE 3

Representations & Warranties of Seller

Seller represents and warrants to Buyer and the Company as of the date hereof and as of the Closing Date:

- **Title:** Seller is the sole legal and beneficial owner of the Shares and has full right, power, and authority to sell and transfer the Shares. The Shares are free and clear of all liens, pledges, charges, and encumbrances other than restrictions imposed by the Stockholders' Agreement and applicable securities laws.
- **Authority:** If Seller is an entity, the execution, delivery, and performance of this Agreement have been duly authorized by all required corporate or organizational action.
- **No Violation:** The execution and performance of this Agreement do not violate any agreement to which Seller is a party or by which Seller or the Shares are bound.
- **No Litigation:** There is no pending or, to Seller's knowledge, threatened claim, action, or proceeding against Seller or relating to the Shares.
- **Compliance:** The sale of the Shares is being made in compliance with all applicable securities laws and the terms of the Stockholders' Agreement.
- **ROFR:** Seller has complied with all right of first refusal procedures required by the Stockholders' Agreement, and all ROFR periods have expired or been waived.



ARTICLE 4

Representations & Warranties of Buyer

Buyer represents and warrants to Seller and the Company as of the date hereof and as of the Closing Date:

- **Investment Intent:** Buyer is purchasing the Shares for Buyer's own account, for investment purposes only, and not with a view to resale or distribution in violation of the Securities Act or applicable state securities laws.
- **Accredited Status:** Buyer is an accredited investor as defined in Rule 501 of Regulation D and will provide documentation sufficient for the Company to verify accredited status under Rule 506(c). For secondary Transfers exempt from Rule 506(c), a sophisticated investor with sufficient knowledge and experience to evaluate the merits and risks of the investment may qualify, subject to Company consent.
- **Risk of Loss:** Buyer understands the speculative nature of this investment, the illiquidity of the Shares, and is able to bear a complete loss of the Purchase Price.
- **Access to Information:** Buyer has had the opportunity to review the Company's financial information and to ask questions of Company management.
- **Stockholders' Agreement:** Buyer agrees to be bound by the Stockholders' Agreement upon Closing by executing the Joinder Agreement attached as Exhibit C, and acknowledges the transfer restrictions therein.
- **Authority:** If Buyer is an entity, the execution and performance of this Agreement have been duly authorized.



ARTICLE 5

Company Representations (Primary Issuances Only)

In the case of a Primary Issuance, the Company represents and warrants that: (a) the Shares being issued are duly authorized and, when issued and paid for, will be validly issued, fully paid, and non-assessable; (b) the Company has full corporate authority to issue the Shares; (c) the issuance has been approved by Board resolution; (d) the issuance does not violate the Articles of Incorporation, Operating Agreement, or any agreement to which the Company is a party; and (e) the Cap Table delivered to Buyer as of the Closing Date is complete and accurate.



ARTICLE 6

Closing

6.1 Closing Deliveries — Seller/Company

At Closing, Seller (or the Company, as applicable) shall deliver: (i) evidence of book-entry transfer on the Cap Table, or physical stock certificate(s) duly endorsed for transfer, representing the Shares; (ii) any stock powers or transfer instruments required by the Company's transfer agent or Carta; (iii) a copy of the Board resolution approving the Transfer (Primary Issuances only); and (iv) any other documents reasonably requested by Buyer or required by applicable law.

6.2 Closing Deliveries — Buyer

At Closing, Buyer shall deliver: (i) the Purchase Price in immediately available funds; (ii) an executed Joinder Agreement to the Stockholders' Agreement; (iii) an executed counterpart of this Agreement; and (iv) any other documents reasonably requested by Seller or required by applicable law, including accreditation verification materials where applicable.

6.3 Cap Table Update

Immediately following Closing, the Company shall update the Cap Table on Carta to reflect the Transfer and shall deliver to Buyer written confirmation of the updated Cap Table entries reflecting Buyer's ownership.



ARTICLE 7

Post-Closing Covenants

Following Closing: (i) Seller shall promptly execute any additional instruments reasonably requested by Buyer or the Company to evidence the Transfer; (ii) Buyer shall promptly execute any instruments required to become a party to the Stockholders' Agreement and Operating Agreement; and (iii) the Company shall deliver to Buyer copies of the current Operating Agreement and Stockholders' Agreement within five (5) business days of Closing.

ARTICLE 8

Indemnification

Each party shall indemnify and hold harmless the other parties and their respective directors, officers, and agents from any loss, damage, cost, or expense (including reasonable attorneys' fees) arising from: (i) any breach of such party's representations, warranties, or covenants herein; or (ii) any third-party claim arising from such party's actions or omissions in connection with this Agreement. No party's indemnification obligation shall exceed the Purchase Price.



ARTICLE 9

General Provisions

- **Governing Law:** Montana. Disputes resolved by AAA binding arbitration in Missoula, Montana.
- **Entire Agreement:** This Agreement, Exhibits A–C, the Stockholders' Agreement, and Operating Agreement constitute the complete agreement of the parties on the subject matter.
- **Counterparts; Electronic Signatures:** Fully enforceable; electronic signatures are originals.
- **Severability; Amendment:** Invalid provisions modified to be enforceable; amendment requires written consent of all parties.



EXHIBIT A

Transaction Summary

Transaction Type	☐ Primary Issuance ☐ Secondary Transfer
Share Class	☐ Class A ☐ Class B ☐ Class C
Number of Shares	_____
Price Per Share	\$ _____
Total Purchase Price	\$ _____
Seller Name	_____
Buyer Name	_____
Closing Date	_____
ROFR Waiver Date	_____
Board Resolution Date	_____



EXECUTION

Signature Page

IN WITNESS WHEREOF, the undersigned have executed this Agreement as of the Closing Date.

Seller	Buyer	Company Consent — Music Habitat Corp.
NAME	NAME	BY (CEO) — BRANDON BEARD
SIGNATURE	SIGNATURE	DATE
DATE	DATE	
EMAIL	EMAIL	